

U.S. DEPARTMENT OF VETERANS AFFAIRS

VETERAN READINESS & EMPLOYMENT

Chapter 31 Policy and Procedures Manual

PROGRAM OVERVIEW & CLINICAL POLICY

Part I: Program Overview
Section A: Chapter 1 - Overview of VR&E Services

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1.01 Introduction and Authority

M28C.I.A.1.01.a. Under the provisions of 38 U.S.C. Chapter 31, the Department of Veterans Affairs (VA) administers the Veteran Readiness and Employment (VR&E) program. The primary mission of VR&E is to assist veterans and service members with service-connected disabilities to prepare for, obtain, and maintain suitable employment. For veterans whose disabilities are too severe to pursue immediate employment, the program provides comprehensive independent living services to enhance their ability to live as independently as possible within their families and communities.

M28C.I.A.1.01.b. Authority for this program is derived from Title 38 of the United States Code (U.S.C.) and Title 38 of the Code of Federal Regulations (CFR), specifically Part 21. While the M28C manual provides operational policy and guidelines to ensure consistent decision-making, it does not supersede statutory or regulatory mandates. All determinations must ultimately align with 38 U.S.C. Chapter 31 and 38 CFR Part 21.

IMPORTANT NOTE

The M28C manual serves as the primary guidance for Vocational Rehabilitation Counselors (VRCs). While it interprets laws and regulations, it does not carry the weight of law. In cases of conflict, the U.S. Code and Code of Federal Regulations take precedence.

1.02 Eligibility and Entitlement

M28C.I.A.1.02.a. Eligibility Requirements: A veteran must have received, or will receive, a discharge that is other than dishonorable and must have a service-connected disability rating of at least 10 percent from the VA. Service members are eligible to apply if they have a memorandum rating of 20 percent or more, or if they are participating in the Integrated Disability Evaluation System (IDES) process.

M28C.I.A.1.02.b. Entitlement Period: Active duty service members or veterans who apply for VR&E services must undergo an initial evaluation to determine if they have an employment handicap. An employment handicap is defined as an impairment of the veteran's ability to prepare for, obtain, or retain employment consistent with his or her abilities, aptitudes, and interests, resulting from a service-connected disability.

M28C.I.A.1.02.c. Entitlement Determination: If a veteran is found to have an employment handicap, the VRC will determine if he or she has a serious employment handicap (SEH). A serious employment handicap is a significant impairment of a veteran's ability to prepare for, obtain, or retain employment, requiring comprehensive rehabilitation services. The distinction between an employment handicap and a serious employment handicap impacts the period of entitlement and the duration of services provided.

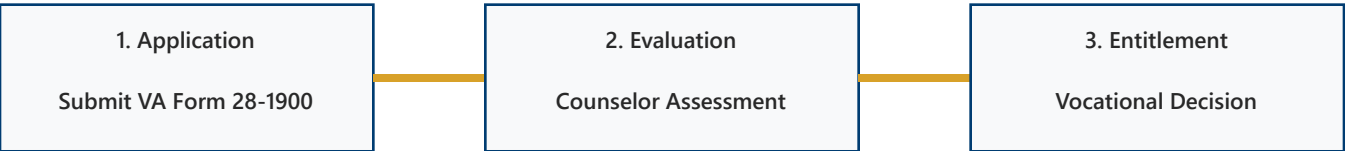


Figure 1.1: VR&E Phase 1 Evaluation and Entitlement Flow.

1.03 Five Tracks to Employment

M28C.I.A.1.03.a. The VR&E program is structured around five specialized rehabilitation tracks designed to address the unique needs of each participant. The VRC collaborates with the veteran to determine the most appropriate track to achieve rehabilitation. The five tracks are:

1. Reemployment

For veterans returning to their pre-service employers. Services include job accommodations, adaptive equipment, and reemployment rights guidance.

2. Rapid Access to Employment

For veterans with the skills to enter the workforce immediately. Services focus on job placement, resume development, and interview prep.

3. Self-Employment

For veterans interested in starting a business. Services include business plan assistance, financial training, and start-up supply support.

4. Employment Through Long-Term Services

For veterans requiring training or education to obtain employment. Covers tuition, books, fees, and a monthly subsistence allowance.

5. Independent Living

For veterans where employment is not currently feasible. Services focus on increasing daily living independence (e.g., home modifications).

TRACK ASSIGNMENT CONSIDERATION

The selection of a rehabilitation track is a collaborative process. The VRC and the veteran work together to assess feasibility, vocational interests, and disability limitations to select the path most likely to lead to successful rehabilitation.